

TENANCY AGREEMENT

BETWEEN

LANDLORD

Name: Lim Koon Huai

NRIC: 820128-07-5305

TENANT

Company Name: Yellowbutter Sdn Bhd

Registration No: 202101038391 (1438691-H)

PREMISES

**#G-15, Block B, Permas City, Jalan
Permas Utara, Kawasan Perdagangan
Permas Utara, Bandar Baru Permas Jaya
81750 Masai, Johor**

AN AGREEMENT made the day and year stated in **Section 1** of the First Schedule hereto

Between

- (1) The party whose name and description are as stated in **Section 2** of the First Schedule hereto (hereinafter referred to as "**the Landlord**") of the one part;

And

- (2) The party whose name and description are as stated in **Section 3** of the First Schedule hereto (hereinafter referred to as "**the Tenant**") of the other part.

WHEREAS:-

- A. The Landlord is the registered and beneficial owner of all that premises described in **Section 4** of the First Schedule hereto together with all the fixtures and fittings as more particularly stated in the Appendix hereto (hereinafter collectively be referred to as "**the Demised Premises**").
- B. The Landlord is desirous of letting and the Tenant is desirous of taking on the tenancy of the Demised Premises upon the terms and conditions hereinafter appearing.

NOW IT IS HEREBY AGREED as follows:-

1. DEFINITIONS

- 1.1 Unless there be something in the context or subject matter inconsistent therewith,
- (a) words importing the singular shall include the plural and vice versa;
 - (b) words importing the masculine gender shall include the feminine and neuter genders and vice versa;
 - (c) references to a natural person shall include a body of person corporate of unincorporated;
 - (d) words "herein", "hereinafter", "hereinbefore", "hereof", "hereunder" and other words of similar import shall refer to this Agreement as a whole and not to any particular provision;
 - (e) the expression "the Tenant" shall also mean and include the Tenant's employees, agents, invitees and any person permitted or authorized by the Tenant to be at the Demised Premises.
- 1.2 Where there are two (2) or more persons or parties included or comprised in the expression "the Tenant", any covenants, terms, stipulations and undertakings expressed to be made by and on the part of the Tenant shall be taken to be made by or binding upon such persons or parties jointly and severally.
- 1.3 Where there are two or more persons included in the terms "the Landlord", their liabilities under this Agreement shall be joint and several.
- 1.4 The headings to the clauses of this Agreement are for convenience of reference only and shall not affect the construction thereof.

2. AGREEMENT TO LET

Subject to the terms and conditions herein contained, the Landlord hereby lets and the Tenant hereby accepts a tenancy of the Demised Premises:

- (a) for the period as set out in **Section 5** of the First Schedule hereto (hereinafter referred to as "**the Term**") commencing and expiring on the date as stated in **Section 6(a) and (b)** of the First Schedule hereto; and
- (b) at a monthly rental as set out in **Section 7** of the First Schedule hereto (hereinafter referred to as "**the Rental**").

3. DEPOSIT

- 3.1 Upon the execution of this Agreement the Tenant shall pay to the Landlord the sum stated in **Section 8(a)** of the First Schedule hereto as a security deposit for the due observance and performance by the Tenant of the terms and conditions of this Agreement and against any claim for damages arising as a result of damage to the Demised Premises caused by the Tenant its agents or servants, and a further sum stated in **Section 8(b)** of the First Schedule hereto as utilities deposit for the payment of any unpaid water, telephone and electricity charges payable in respect of the Demised Premises during the Tenancy herein created (hereinafter together with the security deposit be referred to as "**the Deposit**", the receipt of which the Landlord hereby acknowledges).
- 3.2
 - (a) The Deposit shall not be taken or treated as payment towards account of the Rental and shall be retained by the Landlord for its own use and benefit throughout the Term, with power to the Landlord without prejudice to any other right or remedy hereunder to deduct therefrom any payments due to the Landlord consequent upon any non-observance or non-performance by the Tenant of any covenant herein contained.
 - (b) In the event of any deduction being made by the Landlord from the Deposit, the Tenant shall within **SEVEN(7) DAYS** after the notice of deduction by the Landlord, forthwith top-up the amount so deducted and failure by the Tenant so to do shall entitle the Landlord forthwith to terminate this Agreement.
- 3.3 Subject to the aforesaid, the Deposit shall be refunded to the Tenant without interest, within **THIRTY (30) DAYS** after:
 - (a) the expiration or sooner termination of this Agreement and upon the delivery of vacant possession of the Demised Premises to the Landlord together with receipts evidencing payment of all utilities charges up to the date of delivery of vacant possession; or
 - (b) the settlement of the last outstanding claim by the Landlord against the Tenant in respect of any breach, non-observance or non-performance of any of the covenants herein contained on the part of the Tenant to be observed and performed; whichever is later.

4. COVENANT BY TENANT

THE TENANT HEREBY COVENANTS WITH THE LANDLORD as follows:-

4.1 **Payment of Rental**

To pay with or without the Landlord's demand the Rental herein reserved in advance within **SEVEN (7) DAYS** of each and every succeeding month free from all deductions and the first payment thereof shall be made on the execution of this Agreement.

4.2 **Payment of Utilities**

- (a) To pay all sewerage and utilities charges in respect of electricity, water, telephone and other telecommunication facilities supplied, consumed, used or incurred by the Tenant in the Demised Premises from the date of delivery of vacant possession.
- (b) To furnish to the Landlord on monthly basis, the receipts evidencing payment of all utilities charges to the appropriate authorities.

4.3 **Use of Demised Premises**

- (a) To use the Demised Premises only for the purpose stated in **Section 9** of the First Schedule hereto.
- (b) Not to permit or suffer anyone to sleep at the Demised Premises or to use the same or any part thereof wholly or partly as a dwelling (if the Demised Premises is a shop office/factory/workshop/commercial lot).
- (c) Not to use the Demised Premises or any part thereof for the storage of goods or merchandise or as a laboratory or workshop save and except for the business of the Tenant.
- (d) Not to keep or store or bring upon the Demised Premises arms, ammunition or unlawful goods, gunpowder, saltpeter, kerosene, gas, petrol and generally any inflammable or combustible substance or any goods which in the opinion of the Landlord are of a noxious dangerous or hazardous nature.
- (e) Not to cause accumulation of dirt, rubbish or debris or any sort in or outside the Demised Premises or place or leave at the entrance or stairway, passages or corridors of the Demised Premises any box or rubbish or otherwise encumber and/or obstruct the same.
- (f) Not to dispose of any garbage, rubbish or unused materials except in the manner and at the place as provided by the Landlord or any appropriate authorities and until such time as such garbage rubbish or unused materials is removed from the Demised Premises to keep the same securely sealed.
- (g) Not to do or permit to be done upon the Demised Premises the keeping of any drugs, the smoking of opium or ganja or any other illegal drugs or to use the same as a place of entertainment or for illegal or immoral purposes (political gatherings and funerals are strictly prohibited) or anything which may contravene any laws, by-laws, acts, ordinances, enactments or regulations made by any of the appropriate authorities.
- (h) Not to overload the floors or walls of the Demised Premises and shall when required by the Landlord to distribute any load on the floors or walls of the Demised Premises in accordance with the requirements of the Landlord.

4.4 Insurance

The Tenant shall not do anything whereby any policy of insurance of the Demised Premises against fire may be rendered void or voidable or the premium payable thereof to be increased and shall make good all damages suffered by the Landlord and shall on demand pay to the Landlord any such increased premium and all expenses incurred by the Landlord in or about any renewal of such policy or policies rendered necessary by a breach or non-observance of this covenant without prejudice to the other rights of the Landlord.

4.5 To Permit Inspection and Repairs

- (a) Upon reasonable notice (except in the case of emergency whereupon no notice shall be required) to permit the Landlord and/or his agent, employees or workmen at all reasonable times to enter the Demised Premises for the purpose of, inter alia,;
 - (i) viewing the state and condition of the Demised Premises;
 - (ii) taking of inventory of the Landlord's fixtures and fittings therein;
 - (iii) carrying out structural repairs to the Demised Premises; or
 - (iv) carrying out repairs to the outer walls or external part of the Demised Premises.

4.6 Notice of Defects

To promptly give written notice to the Landlord of any accident, defect or damage that may occur to the roof, main structure and outer walls or external part of the Demised Premises and to keep the Landlord informed of any circumstances likely to be of or cause any danger, risk or hazard to the Demised Premises.

4.7 Alteration and Additions

- (a) Not to make or permit to be made any alteration, addition or improvement to the Demised Premises or any part thereof without prior written approval of the Landlord.
- (b) The Tenant shall cause plans and drawings of the alterations, additions or improvements to the Demised Premises to be drawn and submitted to the Landlord and the appropriate authorities for approval and shall comply with the conditions therein.
- (c) The Tenant shall nevertheless not carry out any work until and unless the approvals of the appropriate authorities are obtained.
- (d) The costs and expenses of the alterations, additions or improvements shall be borne by the Tenant and not claimable from the Landlord upon the expiry or termination of this Agreement.
- (e) Should any damage caused by the Tenant, the Tenant's employees or agents to the Demised Premises or any part thereof due to the renovations, additions or alterations as aforementioned, the Tenant shall repair forthwith and make good such damage to the satisfaction of the Landlord. Upon default, it shall be lawful for the Landlord (but not obligatory) to remedy or repair such damage and the costs and expenses incurred thereby shall be a debt due from the Tenant to the Landlord and be forthwith recoverable by the Landlord from the Tenant upon demand.

- (f) Upon the termination of this Agreement, the Tenant shall if requested by the Landlord demolish any alteration, addition or improvement to the Demised Premises carried out pursuant to the Landlord's and the appropriate authority's approval so as to reinstate the Demised Premises to its original state and condition as at the date of delivery of vacant possession.

4.8 Upkeep and Maintenance

- (a) During the duration of this Agreement and for so long as the Tenant remains in occupation and possession of the Demised Premises, keep and maintain at the Tenant's own costs and expense, the whole of the Demised Premises including but not limited to the interior, flooring, finishes and renderings to the walls, ceilings, doors, windows, electrical installations and wiring, the Landlord's fixtures and fittings in the Demised Premises in good and tenantable repair and condition (fair wear and tear excepted).
- (b) To keep the Demised Premises and every part thereof clean and in the best possible hygienic condition and to keep all pipes, drains, basins, sinks and water closets in the Demised Premises clean and unblocked.
- (c) The Tenant shall at its own costs and expense, employ competent and responsible persons acceptable to the Landlord to keep and maintain the Demised Premises in good condition.
- (d) Should any damage or breakage be caused by the Tenant to the Demised Premises or any part thereof, the Tenant shall forthwith repair and make good such damage to the satisfaction of the Landlord, failing which the Landlord shall be entitled to execute the repairs and any costs and expenses incurred in carrying out such work shall be a debt due from the Tenant to the Landlord and be forthwith recoverable by the Landlord from the Tenant upon demand.

4.9 Responsibility for Security

To be responsible for the security and safety of the Demised Premises and in particular the Tenant shall ensure that the windows and doors of the Demised Premises are locked and secured at all times.

4.10 Prohibition of Nuisance

- (a) Not to do, permit or suffer to be done on the Demised Premises anything hazardous, immoral or which contributes a nuisance to the neighbours, and further to indemnify the Landlord against any loss suffered as a result of any such act or omission.
- (b) Not to commit or suffer to be done on the Demised Premises any offensive or noisy activity or in any manner which may be a nuisance or annoyance to or in any way interfere with the quiet enjoyment and comfort of the neighbours, and further to indemnify the Landlord against all losses, actions, proceedings, costs, expenses, claims and demands as a result of any such act, matter or thing done or omitted to be done.

4.11 Compliance with Law

To observe and comply with all laws, statutes, ordinances, proclamations, orders or regulations affecting or relating to the Demised Premises and with all requirements or directives which may be issued or given by any appropriate authorities and the Tenant shall

fully indemnify the Landlord against all claims, demands, actions, fines, penalties and legal proceedings of whatsoever nature whether civil or criminal in respect of any breach by the Tenant of any such laws, statutes, ordinances, proclamations, orders, regulations, requirements or directives.

4.12 Statutory Notice

Within **SEVEN (7) DAYS** of its receipt of any notice, order or proposal for an order issued or made to the Tenant from any appropriate authorities in respect of the Demised Premises, to give full particulars of the same to the Landlord and if so required by the Landlord to take all reasonable steps or measures (within the period specified by such notice, order or proposal) to comply with the requirements of the same.

4.13 Acts Affecting Fire Risks

Not to do anything whereby any insurance of the Demised Premises against fire may be rendered void or voidable or whereby the premium for any such insurance may be liable to be increased. The Tenant shall make good all damage suffered by the Landlord and shall on demand pay the Landlord such increased premium and all expenses incurred in or about any renewal of such policy or policies rendered necessary by any breach or non-observance of the provisions of this Clause without prejudice to any other rights of the Landlord.

4.14 Not to Assign

- (a) Not to assign, sublet or part with possession of or share the occupation or use of the Demised Premises or any part thereof without the prior written consent of the Landlord.
- (b) In the event the Tenant is a limited company, any substantial change during this Agreement in the equity of the Tenant or any substantial change in the equity of any holding company of the Tenant, altering the effective control of the Tenant or of the holding company of the Tenant, shall for the purpose of this Agreement be deemed and construed as an assignment, transfer, disposal or sub-letting of the Demised Premises. For the purpose of this Agreement, "substantial change" means any change in the shareholding of the Tenant or the Tenant's holding company equivalent to an aggregate of twenty-five per cent (25%) or more of the equity of the Tenant or of the Tenant's holding company as at the date hereof.
- (c) In the event that the Tenant is a sole proprietorship or partnership, the Tenant shall ensure that any change in the proprietorship or members of the partnership shall only be effected with the prior approval of the Landlord. Any change effected without the approval of the Landlord shall for the purpose of this Agreement be regarded and construed as an event of default entitling the Landlord to terminate this Agreement.

4.15 No Auction

Not to permit or suffer any sale by auction or exhibition to be held at the Demised Premises.

4.16 No Caveats

Not to lodge or cause any caveat to be lodged on the Demised Premises. If the same is so lodged, the Tenant shall within **SEVEN (7) DAYS** upon receipt of the notice by the Landlord withdraw or cause the same to be withdrawn failing which the Tenant shall be liable to pay compensation for any damage or loss suffered by the Landlord.

4.17 Warranties and Representations

The Tenant hereby acknowledges and declares that no representation, warranty, undertaking or holding out of any nature has been given or made by or on behalf of the Landlord in respect of the suitability of the Demised Premises or the fittings, fixtures, facilities and amenities of the Demised Premises in connection with the business intended to be carried out by the Tenant at the Demised Premises and that this Agreement sets forth the entire legal relationship between the parties hereto in relation to their respective rights, obligations and privileges herein contained and the Tenant hereby agrees and acknowledges that the Tenant has not entered into this Agreement relying on any representation or warranty made by the Landlord or the Landlord's employees and/or agents other than those made herein.

4.18 For Potential Sale

During the currency of this tenancy, to allow the Landlord or its representatives at all reasonable times and by prior appointment to bring any interested parties to view the said premises in the event of a prospective sale thereof. The said premises shall be sold subject to this tenancy.

4.19 To Permit Inspection Prior to Termination of Tenancy

At any time during the last **TWO (2) MONTHS** immediately preceding the expiration of the Term or the sooner termination of this Agreement, the Tenant shall permit the Landlord or the Landlord's agents or employees to affix and retain on a conspicuous part of the Demised Premises a notice for re-letting or the sale thereof and to permit the intending tenant or others with written permission from the Landlord or the Landlord's agents or employees, at all reasonable times of the day, to enter and view the Demised Premises.

4.20 On Termination of Tenancy

- (a) Unless otherwise specified by the Landlord, the Tenant shall on the expiration or sooner termination of the Term peacefully yield up and deliver vacant possession of the Demised Premises to the Landlord together with the fixtures and fittings and all locks and keys (other than the partitions and the Tenant's trade fixtures) in good and tenantable repair and condition (fair wear and tear excepted) to the satisfaction of the Landlord and to replace at the Tenant's own costs and expenses any walls, window glass, light fittings, ceilings, panels or other fixtures and fittings belonging to the Landlord which have been damaged in any way by the Tenant. If the Tenant fails to yield up the Demised Premises in the manner prescribed upon the expiry of the Term, it shall be lawful for the Landlord's employees or agents to remove the trade fixtures and partitions on the Tenant's behalf, to repair all damage and breakage caused by the Tenant and to reinstate the Demised Premises to the reasonable satisfaction of the Landlord and all costs incurred thereby shall be deducted from the Deposit stipulated in Clause 3 herein.
- (b) Unless otherwise agreed in writing by the Landlord, if the Tenant continues to occupy the Demised Premises or fails to deliver vacant possession thereof to the Landlord after the expiration of the Term, the Tenant shall pay the Landlord a sum equivalent to **TWO (2) TIMES** of the Rental pro-rated on a daily basis for the period of holding over the Demised Premises and such holding over shall not constitute a renewal of this Agreement.

4.21 Conditions Precedent before Yielding Up

Unless otherwise agreed to in writing by the Landlord, it shall be a condition precedent that the Tenant shall have first reinstated the Demised Premises to a state and condition satisfactory to the Landlord prior to the yielding up by the Tenant of the Demised Premises and all damage caused by such reinstatement shall be made good by the Tenant to the reasonable satisfaction of the Landlord.

4.22 Exemption

- (a) The Tenant shall occupy and use the Demised Premises at the Tenant's own risk.
- (b) The Landlord and its officers, employees, agents or contractors shall not be liable or in any way responsible for all claims, demands, actions, suits, proceedings, damages, costs, expenses or any nature whatsoever which the Tenant or any other person may suffer or incur in connection with:
 - (i) any injury or death of any person (including the Tenant);
 - (ii) any damage or loss to any property (whether belonging to the Tenant or otherwise); or
 - (iii) any consequential loss of any person (including the Tenant) arising from any accident, omission, negligence, breach, default or act of whatsoever nature (including any criminal acts by any person) within the Demised Premises irrespective of whether such is caused by any act, omission, breach, default or neglect of the Landlord or its officers, employees, agents or contractor, the Tenant or otherwise.

4.23 Indemnity

In addition to and not in derogation of the provisions of Clause 4.23 hereof, the Tenant shall indemnify and keep the Landlord fully indemnified against all actions, claims, proceedings, demands, losses, damage, costs and expenses arising from or in connection with:

- (i) all claims, proceedings, actions, costs, losses, charges and expenses which the Landlord may sustain, incur or pay arising out of or in connection with any act, omission, breach, default or neglect on the part of the Tenant;
- (ii) any loss or damage to the Demised Premises, its adjoining or neighbouring premises caused whether directly or indirectly by the Tenant or the Tenant's employees, agents, licensees, invitees and/or guests, in particular (but without limiting the generality of the foregoing) cause whether directly or indirectly by the use, misuse, waste or abuse of water, electricity or other utilities or faulty fitting or fixtures of the Tenant;
- (iii) any loss, damage or injury from any cause whatsoever to property or person or to the Demised Premises caused or contributed by the use of the Demised Premises or any act, omission, neglect, breach or default by the Tenant;
- (iv) any injury, loss or damage which may be caused to or suffered by the Landlord as a result of or in any way connected with the design and construction of the Demised Premises or any material used for the construction or maintenance of the Demised Premises or any fixtures and fittings therein;
- (v) the overflow, leakage or escape of water, smoke, fire, electricity, fumes or other substance whatsoever in or from the Demised Premises caused or contributed to by any act, omission of the Tenant; or

- (vi) any breach or non-observance by the Tenant of any of the provisions of this Agreement.

4.24 Health and Welfare

To comply with the provisions for the health safety and welfare of persons employed to work in the Demised Premises in accordance with any laws, by-laws, acts, ordinances, enactments or regulations made by any of the appropriate authorities.

4.25 Act or Default by Tenant's Employees, etc

For the purpose of these presents any act, default or omission of the employees, servants, agents, invitees, licensees and/or guests of the Tenant shall be taken to be the act, default or omission of the Tenant.

5. COVENANTS BY LANDLORD

THE LANDLORD HEREBY COVENANTS WITH THE TENANT as follows:-

5.1 Quiet Enjoyment

That the Tenant paying the Rental herein reserved and performing all covenants on his part shall peacefully hold and enjoy the Demised Premises during the Term without interruption by the Landlord or any person claiming through under or in trust for him or by any other person whosoever and howsoever arising;

5.2 Payment of Outgoings

To pay all quit rent, assessments, property tax or other rates and impositions of like nature by whatsoever name called levied on the Landlord in respect of the Demised Premises save and except those covenanted to be paid by the Tenant under this Agreement.

5.3 Upkeep of the Demised Premises

To keep the roof, main structure and outer walls or external part of the Demised Premises in good and tenantable repair and condition at such times and in such manner as the Landlord in its absolute discretion shall consider to be necessary.

5.4 Insurance by the Landlord

At all times throughout the Term to keep the Demised Premises insured against loss or damage by fire and shall make payments necessary for the aforesaid purpose Provided Always that the provisions of this Clause shall not be deemed to bind the Landlord to insure against consequential loss nor against damage to or destruction of any furniture, fittings, fixtures, stocks in trade or other goods, chattels or effects of the Tenant situated in or upon the Demised Premises or any part of the Demised Premises.

6. MUTUAL AGREEMENT

PROVIDED ALWAYS AND IT IS HEREBY EXPRESSLY AGREED as follows:-

6.1 Damage to Demised Premises

- (a) If at any time during this Agreement the Demised Premises (or any part thereof) is destroyed or damaged by fire (except where such fire has been caused by the fault, negligence, act or omission of the Tenant) so as to be unfit for use, then the whole or a fair proportion of the Rental (according to the nature and extent of the damage sustained) shall be suspended until the Demised Premises or such affected part is rendered fit for use (Provided that nothing herein shall render it obligatory on the part of the Landlord to rebuild or reinstate the Demised Premises or such affected part thereof) and the Landlord shall have the absolute discretion to decide whether to rebuild or reinstate the Demised Premises or such affected part thereof.
- (b) In the event that the Landlord decides not to rebuild or reinstate the Demised Premises or such affected part thereof, then the Rental attributable thereto shall be suspended and shall cease to be payable from the happening of such destruction or damage and the Tenant will peaceably and quietly surrender and yield up to the Landlord vacant possession of the Demised Premises or such affected part thereof which the Landlord has decided not to rebuild or reinstate. If the entire Demised Premises are so affected, the Landlord shall refund the Deposit free of interest to the Tenant less such sum or sums as may be due and outstanding to the Landlord within **THIRTY (30) DAYS** after the Tenant shall have duly delivered to the Landlord vacant possession of the Demised Premises and photocopies of the receipts evidencing the payment of all utilities charges up to the date of delivery of vacant possession. The termination of this Agreement under this Clause shall not render the Landlord liable to the Tenant in any manner whatsoever nor shall the Tenant have any claim (including but not limited to loss of business) against the Landlord in respect thereof.

6.2 Early Termination by Tenant

If this tenancy shall be determined prior to its expiry whether by the Tenant voluntarily or by virtue of Clause 8 hereof the whole of the Deposit shall be forfeited absolutely to the Landlord but without prejudice to any further right or action which the Landlord may have against the Tenant for breach of covenants on the Tenant's part.

6.3 Right to Cut Off Supplies

Without prejudice to the rights of the Landlord herein contained, the Landlord shall be entitled to cut off all supplies of electricity, water and air-conditioning and any other type of utility to the Demised Premises without any prior notice to the Tenant in the event that the Tenant fails or refuses to perform, observe or carry out any of its obligations herein contained of which notice has been given by the Landlord and any inconvenience, loss or damage suffered or sustained by the Tenant as a result thereof shall not be the subject of any claim whatsoever against the Landlord. The Tenant shall be responsible for the payment of the costs and expenses incurred in reinstating the supply of electricity, water, air-conditioning and any other type of utility.

6.4 Set-off or Appropriation

- (a) The Landlord shall be entitled, at any time, to set off or deduct from any moneys held by the Landlord under this Agreement and/or any moneys to be paid by the Tenant under this Agreement:
 - (i) towards satisfaction of whatever outstanding sums due and payable or deemed to be due and payable by the Tenant to the Landlord (including but not limited to any fees or charges outstanding); and/or
 - (ii) for making good any breach of this Agreement by the Tenant.

- (b) The Landlord shall have the right to appropriate, either at the time of payment or at any time thereafter, any moneys paid to the Landlord towards discharge of the Tenant's liabilities under this Agreement as the Landlord may consider fit irrespective of any appropriation purported/intended by the Tenant or by any other party effecting payment.

7. EVENTS OF DEFAULT

7.1 If:

- (i) the Rental or any part thereof or any payment whatsoever due and payable by the Tenant to the Landlord under the terms of this Agreement is in arrears (whether the same has been formally demanded or not);
- (ii) the Tenant commits a breach of any of the terms and conditions contained in this Agreement;
- (iii) any step is taken or an order is made or a resolution is passed or legislation is enacted for the winding-up, dissolution, liquidation or bankruptcy, as the case may be, of the Tenant or a petition for winding-up or bankruptcy, as the case may be, is presented against the Tenant;
- (iv) any execution or attachment is levied, enforced or issued against any of the Tenant's assets at the Demised Premises,
- (v) the Tenant (being a company) is unable to pay its debts within the ambit of the provisions of the Companies Act 1965; or
- (vi) the Tenant dies or of unsound mind (in the case of a natural person);

then in any of such cases it shall be lawful for the Landlord at any time thereafter to serve a notice under Section 235 of the National Land Code 1965 requiring the Tenant to remedy the breach or default (if the same is capable of being remedied) and it is hereby agreed that a period of **SEVEN (7) DAYS** shall be regarded as reasonable and sufficient notice for the purposes of Section 235 of the National Land Code 1965 and:

- (a) upon the expiration of the aforesaid notice and the Tenant's failure to remedy the breach or default complained of; or
- (b) in the case of an event of breach or default not capable of being remedied by the Tenant,

the Landlord shall be at liberty to re-enter the Demised Premises or any part thereof in the name of the whole and thereupon this Agreement shall be treated as determined and the Deposit shall be forfeited by the Landlord but WITHOUT PREJUDICE to any right of action the Landlord may have against the Tenant in respect of any unpaid rental, the rent for the unexpired term and any antecedent breach by the Tenant of the terms and conditions herein contained.

- ### 7.2
- In the event of re-entry by the Landlord or other legal action taken by the Landlord to enforce the terms herein contained or towards recovery of the arrears of the Rental or any other payments payable under this Agreement or for loss or damage suffered by the Landlord, the Tenant shall pay all legal costs and expenses ensuing therefrom and incurred by the Landlord on a solicitor and own client basis.

7.3 Without prejudice to the rights, powers and remedies of the Landlord as otherwise provided in this Agreement, the Tenant shall pay late payment charges by way of interest calculated on a daily basis at the rate of **TWO PER CENTUM (2%) PER MONTH** on all moneys due by the Tenant to the Landlord under this Agreement.

7.4 Notwithstanding anything to the contrary herein contained, if this Agreement comes to an end whether by effluxion of time or otherwise and the Tenant fails to remove all its properties (which expression shall include personal property of every description) from the Demised Premises, it shall be lawful for the Landlord to sell or otherwise dispose of such properties of the Tenant at the Demised Premises at such time and in such manner as the Landlord may at its absolute discretion consider fit WITHOUT PREJUDICE to any other rights, powers and remedies of the Landlord, the Landlord will, after deducting the expenditure incurred for such sale, apply the net proceeds of sale towards payment of all arrears of the Rental and all other moneys due and owing by the Tenant to the Landlord under this Agreement and the balance thereof (if any) shall be paid to the Tenant.

8. FORCE MAJEURE

The Landlord not be liable for any failure in performing or discharging its obligations hereunder if the performance or discharge thereof is rendered impossible or impracticable by reason of any fire, flood, riot, civil commotion, labour disputes, strike, lock out, Act of God, governmental action or any other cause which is beyond the reasonable control of the Landlord.

9. WAIVER OR INDULGENCE

Delay in exercising or omission to exercise any right, power or remedy accruing to either party or knowledge or acquiescence by the party concerned of any breach of any of the conditions or covenants herein contained or any indulgence given by the party concerned shall not affect, impair or prejudice any such right, power or remedy or to be construed to be a waiver of such conditions or covenants or any of them and notwithstanding such knowledge or acquiescence or indulgence given the party concerned shall be entitled to exercise his right under this Agreement and to require strict performance by the other of the terms and conditions herein nor shall the party concerned be liable to the other in any manner whatsoever for not enforcing any of his rights hereunder.

10. SCHEDULES

The Schedule hereto shall be taken read and construed as an essential part of this Agreement.

11. NOTICE

11.1 Any notice required to be served hereunder shall be in writing and shall be considered sufficiently served:

on the Tenant if:

- (i) left at the Demised Premises addressed to the Tenant; or
- (ii) forwarded to the Tenant by prepaid registered and/or ordinary post to the Tenant's last known registered or place of business; and

on the Landlord if:

- (i) sent by prepaid registered post; or

(ii) delivered personally;

to the address of the Landlord herein stated or the Landlord's last known address notified to the Tenant by the Landlord from time to time.

11.2 A notice sent by post shall be deemed to have been given after fifth (5th) day of posting.

11.3 Any change of address by either party shall be communicated to the other in writing. Nothing done in reliance on Clause 11.1 hereof shall be affected or prejudiced by any subsequent change in the address over which the other party has no actual knowledge of at the time the act or thing was done or carried out.

12. APPLICABLE LAW AND COMPETENT JURISDICTION OF COURT

This Agreement shall be governed by and construed in all respect in accordance with the laws of Malaysia and the parties hereto hereby agree that they shall submit to the exclusive jurisdiction of the Courts of the States of Malaya in all matters connected with the obligations and liabilities if the parties hereto under or arising out of this Agreement, and the service of writ of summons, statement of claim or other legal process by prepaid registered post to his address as hereinafter mentioned or in such manner or mode as a court of competent jurisdiction may order or direct

13. ENTIRE AGREEMENT

This Agreement sets out the entire agreement and undertaking between the parties hereto and supersedes and cancels in all respects all previous agreements and undertakings, if any, between the parties hereto with respect to the subject matter hereof. No variation of this Agreement of whatever nature shall be made or purported to be made by any party or parties (nor shall any variation or purported variation be valid or enforceable) unless the same is in writing and duly agreed and executed by all the parties concerned.

14. SEVERABILITY

If any provision of this Agreement for any reason shall be declared invalid, void, illegal or otherwise unenforceable, the remaining provisions of this Agreement shall remain in full force and effect. The parties shall amend that provision in such reasonable manner as to achieve the intention of the parties without illegality or where it is not practicable to do so that provision shall be severed from this Agreement.

15. LEGAL COSTS AND DISBURSEMENTS

The legal costs, stamp duties and other disbursements incurred in respect of this Agreement shall be borne equally between the Landlord and the Tenant unless otherwise specified under the Special Conditions.

16. SUCCESSORS BOUND

This Agreement shall be binding on and be for the benefit of the heirs, personal representatives, successors-in-title and assigns of the Landlord and the Tenant.

17. TIME

Time wherever mentioned shall be of the essence of this Agreement.

18. NON-ASSIGNABILITY

The Tenant shall not assign this Agreement or any part thereof or any interest herein without the prior written consent of the Landlord.

19. SPECIAL CONDITIONS

It is hereby expressly agreed by the parties hereto that the “**SPECIAL CONDITIONS**” annexed hereto as Second Schedule hereto shall form part of this Agreement and that should there be an inconsistent or repugnant term or terms, the term or terms contained and inserted in the “**SPECIAL CONDITIONS**” herein referred shall prevail over the same contained in the General Conditions.

(the remainder of this page is intentionally left blank)

IN WITNESS WHEREOF the parties hereto have hereunto set their respective hands the day and year first above written.

SIGNED by the Landlord)
in the presence of:-)

.....
Witness : Loh Seu Lin

NRIC No: 840119-02-5910

.....
Landlord: Lim Koon Huai

NRIC No: 820128-07-5305

SIGNED by the Tenant)
in the presence of:-)

.....
Witness : Loh Seu Lin

NRIC No: 840119-02-5910

.....
Tenant : Yellowbutter Sdn Bhd

Registration No.: : 202101038391 (1438691-H)

FIRST SCHEDULE

SECTION	ITEM	PARTICULARS
1.	DATE OF THIS AGREEMENT	11/10/2025
2.	PARTICULARS OF THE LANDLORD ADDRESS	Name : Lim Koon Huai NRIC No.: 820128-07-5305 H/P No: +601161701638 22 Jalan indah 29/13, Taman bukit indah, 79100 Iskandar puteri, Johor, Malaysia
3.	PARTICULARS OF THE TENANT ADDRESS	Name : Yellowbutter Sdn Bhd Registration NO.: 202101038391 (1438691-H) H/P No: +60149139085 G-15, Block B, Permas City, Jalan Permas Utara, Kawasan Perdagangan Permas Utara, Bandar Baru Permas Jaya 81750 Masai, Johor
4.	DESCRIPTION OF THE DEMISED PREMISES	G-15, Block B, Permas City, Jalan Permas Utara, Kawasan Perdagangan Permas Utara, Bandar Baru Permas Jaya 81750 Masai, Johor

5.	TERM	Two (2) Year
6.	(a)COMMENCEMENT DATE (b)DATE OF EXPIRY	15 th December 2025 14 th December 2027
7.	MONTHLY RENT	Ringgit Malaysia : Three Thousand Four Hundred Only (RM3,400.00)
8.	(a)SECURITY DEPOSIT (b)UTILITIES/WATER DEPOSIT	Ringgit Malaysia : Six Thousand and Eight Hundred (RM6,800.00) Ringgit Malaysia : One Thousand Seven Hundred. (RM1,700)
9.	PURPOSE	Commercial shop/office

SECOND SCHEDULE

SPECIAL CONDITIONS

1. The rental shall bank in to Landlord's bank account every month:-

Bank Name : CIMB Bank Berhad
Account Name : Lim Koon Huai
Account Number : 7040090616